The Court's order to appear and show cause why Case Nos. 23CV423808 and 25CV470109 should not be consolidated, Plaintiff's motion to compel production of documents (sets 4 and 5), and Defendant's motion to compel production of ESI in either native or another reasonably usable format came on for hearing before the Court on September 4, 2025. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on September 3, 2025.

I. Consolidation of Case No. 25CV470109 with Case No. 23CV423808

Code of Civil Procedure Section 1048(a) provides: "When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." "A consolidation of actions does not affect the rights of the parties. The purpose of consolidation is merely to promote trial convenience and economy by avoiding duplication of procedure, particularly in the proof of issues common to both actions." (*Wouldridge v. Burns* (1968) 265 Cal. App. 2d 82, 86.) "Under the statute and the case law, there are thus two types of consolidation: a consolidation for purposes of trial only, where the two actions remain otherwise separate; and a complete consolidation or consolidation for all purposes, where the two actions are merged into a single proceeding under one case number and result in only one verdict or set of findings and one judgment." (*Hamilton v. Asbestos Corp., Ltd*. (2000) 22 Cal.4th 1127, 1147.) "Consolidation under Code of Civil Procedure section 1048 is permissive, and it is for the trial court to determine whether the consolidation is for all purposes or for trial only." (*Id*. at 1149.)

Plaintiff insists that Case Nos. 23CV423808 and 25CV470109 are so different that they are not even related. California Rule of Court, Rule 3.300 provides:

> (a) Definition of "related case" A pending civil case is related to another pending civil case, or to a civil case that was dismissed with or without prejudice, or to a civil case that was disposed of by judgment, if the cases:
>
> (1) Involve the same parties and are based on the same or similar claims;
>
> (2) Arise from the same or substantially identical transactions, incidents, or events requiring the determination of the same or substantially identical

questions of law or fact;

(3) Involve claims against, title to, possession of, or damages to the same property; or

(4) Are likely for other reasons to require substantial duplication of judicial resources if heard by different judges.

Plaintiff's contention that these cases are not related is untenable. The cases involve the same Defendant and a shared Plaintiff. The addition of Mr. Katsioulas as a Plaintiff in Case No. 25CV470109 does not change the analysis; Mr. Katsioulas is Archon Design's principal. The cases also both involve the relationship between the parties, TIES, and Plaintiffs' alleged ouster from Defendant. In fact, the amended complaint in Case No. 25CV470109 specifically references alleged litigation related activities in Case No. 23CV423808. Some of the allegations in Case No. 25CV470109 are also nearly identical to allegations in Case No. 23CV423808.

The trier of fact in each case will need to learn the history of the parties' relationship, what TIES is and how it relates to the parties, what GSA is, and who Plaintiffs are on their own and in relation to GSA. Discovery in Case No. 23CV423808 regarding these topics is obviously the same for Case No. 25CV470109. State courts are woefully underfunded; the courts are here to serve the people, but we must do so with efficiency so that tax payers' hard earned dollars are used wisely. In this context, given the substantial overlap between the first and second filed cases, it would be inappropriate to have separate trials for these two cases.

The Court thus finds that Case Nos. 23CV423808 and 25CV470109 should be consolidated for all purposes up through and including trial. The necessary adjustment to the trial schedule for Case No. 23CV423808 will prolong the final resolution of the parties' ongoing dispute, but will increase efficiency for the court and the parties overall.

II. Plaintiff's Motion to Compel Production of Documents (Sets 4 and 5)

Plaintiff's motion again seeks deep and extensive discovery into GSA's financial records. Plaintiff contends that while in its November 15, 2024 order, the Court ruled such records were not relevant to the parties' alleged May 2021 stipend and deferred compensation arrangement pled in SAC paragraph 12, it is relevant to the "amended agreement" pled in SAC paragraph 17.

SAC paragraph 12, which Plaintiff characterizes as the May 2021 agreement, alleges:

> By March 2021, Katsioulas had grown TIES to 26 corporate members and over 40 individual contributors validating the potential value to GSA and to Siemens which had a central role in the ecosystem, with several business units across the value chain. However, Katsioulas could not support leading and administering TIES by himself without resources and investment. In May 2021, Strittmatter agreed to pay Archon a stipend of $200 per hour for up to 40 hours per month and asked Katsioulas to supply monthly logs for the time he spent on TIES. Katsioulas and GSA agreed that any hours in excess of 40 hours per month logged in by Katsioulas would be rolled forward and that any accumulated payments to Archon for these "extra hours" would be deferred provided that Katsioulas continued leading the group and did not voluntarily leave. In exchange for leading the group, Strittmatter agreed to waive the minimal membership fee for Archon, and to admit Archon as a GSA member with the same benefits as other GSA members. Membership benefits include access to all GSA website content, market analyst reports, and free admission to GSA events. Starting in June 2021, GSA requested as part of the agreement that Katsioulas email Strittmatter detailed monthly logs of all the hours he worked and attached a PDF itemizing all the hours with a description of his activities for growing, leading, and administering the TIES Board and the group for the benefit of GSA. (A total of all hours logged is attached hereto as **Exhibit 1**). In September 2021, in reply to Katsioulas' submitting a log for August hours, including time over 40 hours, Strittmatter wrote back assuring Katsioulas that Archon's hours were "logged accordingly" and that GSA would keep an "estimated reserve" for payment.

SAC paragraph 17, which Plaintiff now characterizes as the amended agreement, alleges:

> In October 2022, Strittmatter praised Katsioulas for the TIES progress and confirmed that GSA would pay Archon the excess hours worked. He lauded

> Katsioulas' performance for the TIES accomplishments to date and told Katsioulas that the GSA had achieved record levels of increased revenues from subscriptions, and that GSA's budget for 2023 included Archon's monthly stipend. Strittmatter discussed with the GSA Finance committee (Bami Bastani and Mark Papermaster) the TIES progress and introduced Katsioulas to Bastami. Subsequently, Katsioulas met with Bastani, a GSA Board member from GlobalFoundries ("GF"), to discuss the value of TIES and how to promote TIES to the GSA Board. Bastani clearly saw the value of TIES, as he proposed presenting the TIES strategy to GF executives before promoting it to the GSA Board. Meanwhile, Strittmatter and Katsioulas estimated that the new plan for GSA and revenue streams including the significant contribution of the TIES platform, would generate over $2 million of additional revenues in 2023 from subscriptions, TIES sponsorships, membership price increases, reduction of member discounts, WLI sponsorships and post-COVID resumption of GSA's usual in-person events. The total GSA revenues for 2023 were projected to be over $7 million with over $500,000 in profit, ***without factoring in any TIES-related membership and sponsorship revenues or additional government funding related to the CHIPS Acts subsidies, which were projected to begin in late 2023 or early 2024. Strittmatter stated that if the projections of the were achieved, Archon would be paid additional compensation as commissions based on membership and sponsorship revenues related to the TIES 2023 plan.*** (Emphasis added.)

Tellingly, in 39 pages, the SAC does not refer to an amended agreement anywhere and does not refer to "additional compensation" anywhere other than paragraph 17. Instead, the SAC only refers to what Plaintiff now calls the May 2021 agreement. And although the SAC was the operative complaint during the November discovery conference when the Court made clear the extensive financial discovery Plaintiff sought was not relevant to his failure to be paid overtime claim, Plaintiff never once argued orally or in writing that SAC paragraph 17 alleged an amended agreement in a way that made this discovery relevant. Plaintiff never argued or represented there was an amended agreement during the extensive demurrer motion practice either. This is not surprising because paragraph 17 does not allege an agreement. And even if it did, the SAC further alleges the parties' relationship had soured and GSA was no longer supporting TIES as of March 2023. (See, e.g., SAC ¶24.) And this increased TIES related revenue was projected to begin in late 2023 and early 2024—after GSA already dropped TIES.

While the relevance analysis may change after consolidation, Plaintiff cannot hook its renewed request for extensive under-the-hood discovery from GSA on this single sentence in a 39 page SAC characterized as an amended agreement for the very first time only after the Court denied earlier requests for discovery.

Plaintiff's motion to compel is DENIED. Plaintiff is ordered to pay $3000 in sanctions, representing a reasonable amount of attorneys' fees to respond to this motion to compel, within 30 days of the court's service date of the formal order.

III. Defendant's Motion to Compel

Defendant's document requests included the following instruction: "DOCUMENT includes electronically stored information (ESI). ESI in these requests shall be produced in its/their native format." Plaintiff did not object to this requested format in its written responses.

Plaintiff made the following productions:

- **<u>Production 1</u>**
    - Responsive to RFP Set One
    - Produced on March 15, 2024
    - 11 undifferentiated bulk pdfs (AR 0000001–846)
    - Number of pages per pdf = 72, 53, 47, 97, 57, 46, 74, 42, 127, 166, 65

- **<u>Production 2</u>**
    - Responsive to RFP Set Two
    - Produced on January 15, 2025
    - 2 pdfs containing unannotated versions of documents previously produced with

annotations (AR 0000173-269 and AR 0270-326)

o 18 new undifferentiated bulk pdfs (AR 0001001-044069)

o Number of pages per pdf = 1803, 1968, 1782, 2974, 2378, 2783, 1248, 1047, 3294, 3505, 2690, 2199, 2387, 2210, 2571

- **<u>Production 3</u>**

o Responsive to RFP Set Two

o January 27, 2025

o 1 undifferentiated bulk pdf (AR 0000847-875)

o Number of pages per pdf = 29

Defendant contends these bulk PDF productions, although searchable, so not differentiate between documents and do not permit the level of review and searching available in Relativity, an electronic discovery tool. Plaintiff contends it does not have access to or familiarity with Relativity and breaking the bulk PDFs up into individual documents would be unduly burdensome. Plaintiff also argues its production is "reasonably useable", citing Code of Civil Procedure section 2031.280, which provides:

> (c) If a party responding to a demand for production of electronically stored information objects to a specified form for producing the information, or if no form is specified in the demand, the responding party shall state in its response the form in which it intends to produce each type of information.
>
> (d) Unless the parties otherwise agree or the court otherwise orders, the following shall apply:
>
> (1) If a demand for production does not specify a form or forms for producing a type of electronically stored information, the responding party shall produce the information in the form or forms in which it is ordinarily maintained or in a form that is reasonably usable.
>
> (2) A party need not produce the same electronically stored information in more than one form.

First, the fact that GSA may have these emails and attachments in its own servers is irrelevant. The mere fact of possession of certain documents by a party can be evidentiary, and GSA is entitled to know what documents *Plaintiff* has even if those documents might overlap with what GSA has.

Next, as the Court explained during the August 21, 2025 discovery conference, it is problematic that the PDFs are lumped together in a way that makes it difficult to know when a document ends and begins. Despite the Court expressly flagging this concern, Plaintiff does not address it other than to represent that it should be easy to figure it out.

Plaintiff complains that Defendant seeks to shift the discovery burden to Plaintiff, but this is Plaintiff's document production, and it is Plaintiff's burden to make a reasonably usable document production. If it is, as Plaintiff contends, easy to figure out the breaks in the documents, why is it that Plaintiff cannot break the bulk PDFs into the individual documents and produce the native Excel spreadsheets?

This is not about Defendant being able to use the Relativity platform for document review. While Defendant may find this to be industry standard, there is a wide variety of production formats parties use depending on case and law firm size. If Defendant wanted a Relativity production, there should have been an explicit meet and confer and agreement on that format before either party produced documents.

However, the very well known problem with non-native Excel spreadsheets and the inability to know when a document ends and begins or what is an email attachment versus a stand-alone document is actual and real. Defendant's proposed comprise therefore makes sense, as it does not require a specialized platform, permits Plaintiff to produce in PDF form, and enables GSA to understand what Plaintiff believes to be one document, attachments, or standalone non-email documents.

Defendant's motion is accordingly GRANTED. Within 30 days of the court's service date of this formal order, Plaintiff shall:

1. Reproduce its produced documents using the same Bates numbers as previously used by Plaintiff in its bulk pdf productions;

2. Produce each document as a separate Bates-stamped pdf so that GSA can tell where the document begins and where it ends. Emails with attachments will be produced in correct

bates-stamped order reflecting the document "family."

3. Produce Excel spreadsheets in both pdf (bates stamped) and native format with the native format files named with the corresponding beginning bates number.

This is a dispute that should have been resolved in meet and confer. Defendant raised a legitimate concern about knowing when a document ends and begins and not being able to read non-native Excel files and attempted to come up with a compromise solution. It does not appear in this record that Plaintiff proposed any alternatives but instead dug into its position that the production was fine as it was. That is unfortunate.

However, this was a simple issue, thus the Court does not find the amount of fees sought appropriate. Plaintiff is ordered to pay $4,200 in sanctions to Defendant within 30 days of the court's service date of this formal order.

IT IS SO ORDERED.

Date: ______________________ ______________________________________

Hon. Evette D. Pennypacker
Santa Clara Superior Court Judge

Line 6

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA

WELLS FARGO BANK, N.A., Plaintiff, v. ANNIE KIM, an individual, Defendant.	Case No. 24CV443308 **ORDER DEEMING MATTERS IN REQUESTS FOR ADMISSION ADMITTED**

Wells Fargo Bank, N.A's motion to deem matters in requests for admission admitted originally came on for hearing before the Court on June 26, 2025. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on June 25, 2025. Wells Fargo appeared, reported that the parties were in settlement discussions, and requested that the hearing on this motion be continued, which request the Court granted. The motion is now again on for hearing before the Court for September 4, 2025 at 9 a.m. in Department 6. The file contains no indication that this matter has resolved. Accordingly, the Court reissues its tentative ruling.

Wells Fargo Bank, N.A's motion for order that matters in request for admission of truth of facts be admitted is GRANTED. A notice of the motion with this hearing date was served on Defendant by United States and electronic mail on January 29, 2025. Defendant failed to file an